

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

September 17, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Alvarez v. Innovative Construction Solutions 2024-01399590	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for preliminary approval of a \$760,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u>

		1. Several paragraphs of the settlement agreement appear to be misnumbered. E.g., paragraph 72 is followed by paragraph 75.1, etc.; paragraph 73 is followed by paragraph 76.1, etc.; and so on. 2. The reference to "Section 66" in paragraph 40 appears to be an error. 3. The reference to "Section 67" in paragraph 41 appears to be an error. 4. The "Released Parties" provision in paragraph 42 is overbroad, as it includes unidentified, unrelated and/or ambiguous third parties such as "affiliates," "agents, attorneys, [and] insurers." 5. The third sentence of paragraph 77 should be removed, as the court will not approve a settlement that permits defendant to shorten the class period or the PAGA period. 6. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiffs' counsel should address in the supplemental filing whether any such unique circumstances exist here. 7. Plaintiffs' counsel seeks costs not to exceed \$50,000. Plaintiffs' counsel has to date incurred costs totaling \$20,127.55. Kim Decl. Ex. 4. Why should the not-to-exceed costs amount be so much higher than plaintiffs' counsel's incurred costs? Do plaintiffs' counsel anticipate incurring substantial additional costs? In addition, postage charges are not recoverable and should not be included, and, while the court will determine actual costs incurred at final approval, the court will not award "future" costs that have not been incurred. 8. Plaintiffs each seek an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiffs until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 for each plaintiff absent unique circumstances. Plaintiffs should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice:</u> 9. The notice should be revised consistent with the above. 10. There is a stray subsection (e) on page 4 of the notice. 11. The third sentence of subsection 3(g) of the notice should be revised as follows: "In the alternative, the Request for Exclusion may be a letter from a Class Member setting forth the Class Member's name, present address, telephone
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		number or email address, and a simple statement electing to be excluded from the Settlement.” 12. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit. <u>As to the proposed order (ROA 122, 126):</u> 13. The proposed order should be revised consistent with the above. 14. The settlement agreement, any amendments thereto and the notice packet (including the exclusion and objection forms) should be attached to the proposed order as exhibits. 15. The word “conditionally” in paragraph 2 should be replaced with “preliminarily.” 16. The word “preliminarily” should be inserted in paragraph 3 after “hereby” and before “appoints,” and in paragraph 4 after “hereby” and before “appoints.” 17. The phrase “preliminarily approves” should be inserted in paragraph 5 in place of “confirms.” 18. The phrase “to the Settlement Agreement” in paragraph 6 should be replaced with “hereto.” 19. The Gross Settlement Amount should be stated in paragraph 11. 20. The proposed order should include the following statement: “The court orders the parties, their counsel and the settlement administrator to carry out their duties and obligations in accordance with the Settlement Agreement.” The hearing on plaintiffs’ motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 11, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than “amended settlement agreement,” to streamline the court’s review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiffs are ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
2	Balderrama v. Omni Enterprise Inc.	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u>

	2022-01256174	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$325,000 class action and PAGA settlement. Subject to defendant's submission of the declaration described below, the court grants the motion as follows: \$5,000 for enhancement award to plaintiff (not to exceed); \$97,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$6,950 for settlement administration fees (not to exceed); and \$20,000 total PAGA penalties (\$15,000 to LWDA). In the April 30, 2026 order (ROA 181), the court asked (i) whether the plaintiffs in the two cases identified in the Mojarro Declaration (ROA 168) are putative class members and/or aggrieved employees in this case, and (ii) how the settlement in this case will affect the plaintiffs' claims in the two cases identified in the Mojarro Declaration. ROA 181 (No. 5). These issues have not been addressed. Defendant's counsel is ordered to file and serve <u>by September 24, 2026</u> a declaration answering these questions. The final approval hearing is scheduled for <u>February 25, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
3	Clarke v. Purpose Driven Transport Inc. 2024-01421145	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$163,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Pursuant to the court's April 16, 2026 order (ROA 74), plaintiff has provided the estimated average, high and low class payments, and the estimated average, high and low PAGA payments. Lawrence Decl. (ROA 89) ¶¶ 24-25. The parties state that since the time of the last hearing they renegotiated the class period and PAGA period. Supp. Brief (ROA 81) at 3:16-23; Lloyd Decl. (ROA 83) ¶ 5. What class period and PAGA period did Lawrence use to calculate the estimated average high and low individual class and PAGA payments? 2. The Lawrence Declaration (ROA 89) states in paragraph 23 that the Net Settlement Amount is \$66,200 and in paragraph 24 that the Net Settlement Amount is